Executive Order

Transit and Harbor Regulations for The Panama Canal and Approaches Thereto, Including All Waters Under Its Jurisdiction.

By virtue of the authority vested in me by law it is ordered that the following Transit and Harbor Regulations for The Panama Canal and Approaches Thereto, including All Waters under its Jurisdiction, be, and they are hereby, adopted:

I. OPERATION AND NAVIGATION.

1. GENERAL.

Section 1. These rules shall apply to all waters which are now or may hereafter be under the jurisdiction of the Canal Zone Government.

Section 2. Any person violating any of the provisions of the rules and regulations established hereunder, shall be deemed guilty of a misdemeanor, and, upon conviction thereof, shall, except where otherwise stated, be punished by a fine not exceeding one hundred dollars ($100.00), or by imprisonment in jail not exceeding thirty days, or by both such fine and imprisonment.

Section 3. The Canal authorities may deny any vessel passage through the Canal the cargo of which is of such a nature that it might, in any way, endanger the locks, wharves, equipment, or any part of the Canal, by being explosive or highly inflammable. The further right is reserved to them to impose such safety regulations as they may see fit upon any such vessel while in Canal waters.

Section 4. Vessels whose cargoes consist of high explosives should, before leaving their ports of departure, when practicable, obtain permission from the Canal authorities to use the Canal. In requesting such permission, the character and approximate amount of explosives should be stated, the ports of departure and destination, name of ship and party to whom consigned. This may be done by mail or cable. In general, permission will not be refused, but these precautions are taken to safeguard the Canal's interests. Vessels loaded with volatile crude oil products must obtain permission to pass through after arrival, and this will be granted unless there be some exceptionally good reason to the contrary.

Section 5. Vessels carrying explosives consigned to ports beyond the ports of the Canal Zone will not be allowed alongside the wharves while such explosives are on board. Vessels having explosives consigned to Canal Zone ports must obtain special permission from the Port Captain before they will be allowed alongside the wharves, and must discharge such explosives before handling any other cargo. Each instance will be handled upon its individual merits.

Section 6. In any case where the condition of the cargo, hull, or machinery of a vessel is such that it is liable to endanger or obstruct the Canal, permission to enter or pass through may be refused until steps have been taken to remedy the defect.

Section 7. Vessels are towed through the locks by electric locomotives, using 1½-inch, steel wire towing lines. Normally, the number of locomotives used is as follows:

Length of vessel (p. p.) in feet	No. of locomotives.
Up to 349	4
350 to 499	6
500 and over	8

These numbers are subject to change, due to other conditions, such as list, trim, or peculiar construction of a ship. In all cases the Canal pilot on board determines the number to be used.

Section 8. For each towing wire used the ship shall be fitted with a heavy closed chock and a heavy pair of bitts, capable of withstanding a strain of 50,000 pounds on the towing wire at any angle. The forward and after chocks should be as near the stem and stern, respectively, as they can conveniently be located. For 6-locomotive ships there shall be a chock on each side near amidships, and for 8-locomotive ships, two additional chocks on each side, one about one-third the ship's length abaft the bow and the other the same distance forward of the stern.

Section 9. The most suitable installations for the bow and stern towing chocks are large chocks set thwartships right in the stem and stern, respectively. These to be double the size and strength given above. Both bow wires and both stern wires are run through such chocks.

Section 10. The leads from chocks to bitts shall be short, straight and fair.

Section 11. While a vessel is being locked up, she shall be tied up to the lock walls with manila mooring lines, one on each bow and one on each quarter, in addition to the towing wires; when being locked down, these lines shall be clear for running and heaving lines passed to the wall.

Section 12. Two deck hands for each locomotive wire are placed on board such vessel, other than men of war, at the terminal port prior to transit, to assist the crew in handling the towing wires in the locks. An appropriate charge is made for the services of these men.

Section 13. The Canal authorities may dispatch vessels through the Canal in any order and at any time they may see fit; priority of arrival at a terminal does not give any vessel the right to pass through the Canal ahead of another that may arrive later, although this will be a consideration in determining the order of passage.

Section 14. Steamers actually carrying fifty or more through passengers will be given preference over other vessels in transiting. To avail themselves of this privilege, such vessels, however, must report by radio the number of such passengers on board.

Section 15. The Canal authorities may hold a vessel for the purpose of investigating any report made against her by the proper persons, for the violation of the rules of the Canal or the laws of the Canal Zone, or of the United States, or for the investigation or adjustment of any claims or disputes that may arise on either side; but no vessel shall have any claim for damages against the Canal for any delay in consequence thereof.

Section 16. Unauthorized possession or transportation of intoxicating liquors in the Canal Zone is a violation of Title III, Section 20, of the U. S. National Prohibition Act. The transportation of intoxicating liquors in transit by vessels is not prohibited. Liquors for medical stores may be procured by application to the Chief Health Officer, and orders for liquors for ships' stores for foreign vessels and for American passenger vessels for use outside of the Canal Zone must be approved by the Chief Customs Inspector.

2. PILOTS AND MOVEMENTS OF VESSELS.

Section 17. Except when exempted in each case by the Governor of The Panama Canal, no vessel will be allowed to pass through the Canal, enter or leave a terminal port, maneuver, shift berth, go alongside or leave any wharf or dock in Canal waters without having a regularly authorized Government pilot on board and specific authority from the Port Captain. The fact that the master or any officer of any vessel holds a pilot's license for any of the waters of the Canal Zone will not authorize the vessel to enter or move without taking a Government pilot. No vessel in danger or distress will be prohibited from entering a terminal port at any time in case of necessity or emergency; but such vessel should, when practicable, give due notice in advance, by radio or otherwise, and obtain a pilot, if possible; nor shall this be interpreted to prevent a vessel from anchoring in the anchorage described in Article 21.

Section 18. Whenever in the judgment of the Receiving and Forwarding Agent, or Port Captain, it is deemed advisable to shift any vessel not fully

engaged in receiving or discharging cargo, in order to accommodate other vessels, or for any other reason, shifting will be made by direction of the Port Captain, and the towing and other expenses thereby incurred will be charged against the vessel so shifted. No vessel at any dock or moorings within the Panama Canal shall disable her engines or otherwise be rendered inoperative except on specific authority from the Port Captain concerned.

Section 19. Pilotage for vessels in transit through the Canal is free, but should any vessel, while in Canal waters, discharge or receive freight or passengers, or take on board supplies, provisions, stores, or fuel, or remain for the purpose of effecting repairs or make either terminal a port of call, she is liable for entrance and/or departure pilotage.

Section 20. No person, steamer, company or corporation will be allowed to maintain or employ pilots in Canal waters for the exclusive use of their own or any other vessels.

Section 21. If a vessel is not boarded immediately on arrival she may anchor and await the boarding party. Vessels anchoring at the Pacific entrance will do so in an area bounded by San Jose Rock, Flamenco Island, channel buoys Nos. 4 and 2, and at the Atlantic entrance just inside the West breakwater. Should a vessel desire a pilot to meet her outside of the Atlantic breakwaters, she should remain there and make signal to that effect.

Section 22. All vessels entering port must take the berth or docks assigned them by the Port Captain.

Section 23. No vessel will be allowed to anchor in any part of the Canal, except in an emergency. Vessels may be permitted by the Port Captain to anchor in Gatun Lake, in suitable localities outside the prism limits, or to moor to the approach walls of the locks, or in established mooring stations.

Section 24. The captain or master of a vessel in Canal waters, except while the vessel is being passed through the locks, shall be charged with the safe handling and proper navigation of the vessel; the pilot is to be considered as being on board solely in an advisory capacity, but masters of vessels must abide by the rules and regulations of the Canal, as interpreted by the pilot.

Section 25. The Panama Canal assumes responsibility for the safe handling of a vessel in the locks from the time the first towing wire is made fast on board, on entering, until all towing wires are cast off, on leaving. This holds good, however, only in cases where the vessel has complied with all the requirements of these regulations, and where motive power, steering gear, and other appurtenances for controlling the ship function properly.

Section 26. The pilot shall be consulted freely at all times to insure safety in navigation, and that no accident or damage result from ignorance on the part of the master or officers of the vessel in transit; and should any such master, officer or persons connected with the ship, give or cause to be given, any order, or direct any change of speed or direction of the ship on his own initiative, without the knowledge of the pilot or against his advice, which may result in damage to his own or any other vessel or Canal property of any kind, or endanger or block the Canal, he will be held strictly responsible, and the vessel itself may be held by legal process until settlement in full shall have been made to cover any loss or damage that may have resulted in consequence thereof.

Section 27. When, in the opinion of the pilot, the master or captain or his representatives have failed to follow the pilot's advice and thereby endangered his own or any other vessel or any part of the Canal or its equipment, the pilot shall then direct the master or captain of such vessel to stop, anchor, or moor, until the facts have been laid before the Canal authorities.

Section 28. Inasmuch as every vessel has its own individual peculiarities in handling, it shall be the duty of the master of the vessel, or his qualified representative, to be present at all times on the bridge of the ship to keep the pilot informed in regard to these matters, so that the pilot may be best qualified to give advice in regard to safely navigating the ship.

Section 29. The pilot shall inform the master or captain that his experience and knowledge of the Canal is at the latter's disposal and that inasmuch as the

pilot is not in a position to know the defects, difficulties, or eccentricities of the vessel in maneuvering, while getting under way or in transit, the responsibility for navigating the vessel is entirely in the hands of the master or captain, except when passing through the locks.

3. PREPARATION FOR AND TRANSIT THROUGH THE CANAL.

Section 30. Incoming ships will be boarded inside the Atlantic breakwater or off the seaward end of dredged channel at the Pacific entrance by a boarding party, which consists, in addition to the pilot, of the quarantine officer (immigration), boarding officer (customs), admeasurer, and commissary representative. Ships arriving between sunrise and 10 p. m. will be boarded on arrival. Those arriving after 10 p. m. will be boarded at sunrise. Vessels boarded between sunset and 10 p. m. will be subject to a charge (passenger vessels, $40; others $20) for quarantine inspection. Vessels arriving at the entrance between sunset and 10 p. m. will be boarded and inspected unless specific request to the contrary is made by the vessel or her agent prior to her being sighted.

Section 31. On arrival, the following papers must be ready for immediate delivery to the boarding party, for inspection or taking up as the case may be:

1. Panama Canal Certificate (Panama Canal Form 4400–1).
2. National Register.
3. Passenger List (4 copies) P. C. Form 18–2 (white). (Not applicable to men-of-war or to vessels carrying large bodies of troops or contract laborers. In such cases, state aggregate number, nationality, occupation, port of embarkation and final destination.)
4. Crew List (2 copies) P. C. Form 1509. (Not applicable to men-of-war. State number on board.)
5. Clearance from last port.
6. Bill of health.
7. Ship information sheet (P. C. Form 4398–15).
8. Manifest of local cargo (3 copies).
9. Cargo declaration (P. C. Form 4363), or complete manifest. (Vessels transiting only.) A manifest so submitted may have the names of consignor and consignee deleted.
10. Descriptive list of Chinese on board (2 copies) P. C. Form 1400.
11. Store List.
12. Statement of fuel account (for vessels in ballast).
13. Pratique.
14. Fumigation certificate (not over 6 months old).
15. Birth and death certificates, if any occurred during voyage.
16. Orders for supplies.

Section 32. A vessel's Panama Canal Certificate may be taken up by the admeasurer and retained at the Canal, if necessary, until the vessel's next visit.

Section 33. Outgoing vessels should receive a clearance and bill of health before departure and must deliver the following papers to the Canal authorities:

1. Passenger list (2 copies) P. C. Form 14–1 (buff). This form may be submitted with the following declaration on the face: "List of passengers same as incoming, with these exceptions (noting exceptions)."
2. Manifest of cargo taken aboard at Canal Zone ports. If none taken, a statement to that effect.

Section 34. Vessels shall be cleared by the Port Captain but he shall not issue a clearance until he has ascertained:

(a) That the required documents and statistical data in regard to vessel, cargo, and passengers have been furnished by the master of the vessel, or that satisfactory arrangements have been made to furnish them through an agency on the Isthmus.

(b) That all tolls and other bills for services and supplies furnished by The Panama Canal or Panama Railroad have been paid, or that their payment has been secured.

(c) That the vessel has complied with the quarantine and immigration laws and regulations of the Canal Zone.

(d) That the laws and regulations governing the shipment and discharge of seamen, and for the protection of seamen, have been complied with.

Section 35. Manifests, lists and statements required above shall be sworn to by the master or agent of the vessel. Boarding officers are authorized to acknowledge depositions and oaths.

Section 36. Vessels shall, at all times, when under way in Canal waters, when passing through the locks, or moored temporarily in transit through the Canal, keep a full watch on deck and in the engine room, in the same manner in which they are kept at sea.

Section 37. When a vessel is entering or leaving a lock, getting under way, anchoring, shifting berth, or is under way in Gaillard Cut, the captain or master shall be on the bridge and all other officers shall be at their regular stations. Deck officers shall, in addition, remain at their stations while the vessel is in the locks.

Section 38. In addition to the regular engineer officers of the watch, the chief engineer of a ship shall remain on duty in the engine room during the approach to and while passing through the locks, and until the lockage shall have been completed and the vessel is clear of the lock walls. He shall also be in the engine room when the vessel is passing through Gaillard Cut, and in getting under way, anchoring or shifting berth. A full head of steam is required on such occasions.

Section 39. While a vessel is under way in Canal waters, no one shall be allowed on the bridge or in the pilot house except the pilot and other representatives of the Canal, the master, and such officers and crew of the ship as may be necessary for her management, direction and safety. Under no condition will any passenger or any other unauthorized person be allowed on the bridge or in the pilot house.

Section 40. Masters shall require all passengers and other persons not engaged in working the ship to keep well clear of bitts, chocks, winches and other gear being used in this connection. The Panama Canal will not be responsible for injuries to persons violating this rule.

Section 41. Before beginning the passage of the Canal, vessels will be required to have hawsers, lines, and fenders ready for passing through the locks, for warping, towing, or mooring as the case may be; and will have both anchors ready for letting go. The master shall assure himself, by actual test, of the readiness of his main engines, steering gear, engine room telegraphs, rudder and engine indicators and anchors. During the passage, at all times while the vessel is under way or moored against the lock walls, her deck winches, capstans or other power for handling lines, as well as her mooring bitts, deck chocks, cleats, hawse pipes, etc., shall be ready for handling ship, to the exclusion of all other work.

Section 42. The Panama Canal is not responsible for damage to any protrusion beyond the ship's side, permanent or otherwise; the latter must be rigged in before transit or going alongside a dock, the former must be protected by adequate fenders.

Section 43. At least one boat for handling lines shall be kept ready for lowering.

Section 44. When necessary, additional rudder area will be required to be fitted before a ship enters.

Section 45. All vessels must be properly trimmed before entering. A vessel is considered as properly trimmed when she is on an even keel as to list and has a slight drag. A vessel is never properly trimmed when she has a list or is down by the head or has an excessive drag. If a vessel arrives at the Canal not properly trimmed, and it is impossible to remedy this condition, the vessel will be taken through, but the Canal will not be responsible for the safe transit of a vessel that is not properly trimmed, as given above, or is overloaded to such an extent as to effect her maneuvering qualities.

Section 46. In all cases the pilot boarding an incoming vessel shall be the judge as to whether or not she is ready for transit, pending reference of the matter to the Port Captain.

Section 47. A vessel carrying a deck load shall have it so arranged that it will be clear of all chocks, bitts and other gear used in locking.

Section 48. All sailing craft, vessels whose machinery may be in bad condition or disabled, and vessels without motive power, must be towed through the Canal, for which service an additional charge will be imposed.

Section 49. When passing through the locks, vessels will habitually be towed by Canal equipment. In exceptional instances, as when such equipment is not available, or in case of very small vessels, the vessel's own motive power may be used, but the crew and officers will be expected to render such assistance as may be necessary to supplement the lock force. A vessel when being towed through the locks may, when necessary, use her main engines in the ahead motion only when starting out of a chamber. Except in an emergency, the main engines will never be used to stop such a ship after entering a chamber.

Section 50. The Governor of The Panama Canal is authorized to issue orders from time to time regulating the procedure in passing vessels through the locks.

Section 51. Masters of vessels will not allow anyone to take passage on their ships while passing through the Canal, except the ship's officers, crew, and duly accredited passengers, and such officials and other persons as may be designated by Canal authorities.

Section 52. If any defect in any part of a vessel be discovered while in transit, of such a serious nature that it might interfere with the further passage of the veessl, the vessel shall stop, and, if practicable, be anchored or moored at the first available place. A full report shall immediately be made to the Port Captain.

Section 53. The Canal authorities may require any vessel to take a tug through the Cut, on approaching the locks, or in any other part of the Canal, when, in their opinion, it may be necessary to insure the safety of the vessel and the Canal.

Section 54. Should a vessel steer badly, the captain or master should so report and request the services of a tug to assist him through the Cut, or whenever a vessel is liable to become unmanageable for any reason. she shall immediately, through the pilot, request the assistance of a tug. In either case the tug service is chargeable to the ship.

Section 55. No firearms of any kind shall be discharged while in transit through the Canal or in Canal waters.

Section 56. Pilots, extra deck hands, and other authorized persons on duty, belonging to the Canal Service, shall be subsisted without charge while on board vessels in transit.

Section 57. No vessel, company or individual will be authorized to maintain or operate permanently any tugs, launches, lighters, or floating equipment of any kind within Canal waters without authority from the Governor.

Section 58. Except by special authority of the Governor and on a pass from the Port Captain's office, in each individual case, passengers will not be allowed to embark upon or disembark from vessels in the locks.

4. RULES OF THE ROAD, WHISTLE AND OTHER SIGNALS AND SPEED REGULATIONS.

Section 59. In the following rules every steam vessel which is under sail and not under steam, is considered a sailing vessel; and every vessel under its own motive power, whether under sail or not, is to be considered a steam vessel.

Section 60. The words "steam vessel" and "steamer" shall include every vessel propelled by machinery.

Section 61. A vessel is under way, within the meaning of these rules, when she is not at anchor, moored, or aground.

Section 62. Risk of collision can, when circumstances permit, be determined by carefully watching the bearings of an approaching vessel by compass, or otherwise; if the courses be converging and the bearing does not appreciably change, such risk should be deemed to exist.

Section 63. Steam vessels shall be provided with an efficient whistle or siren, sounded by steam or some substitute for steam, so placed that the sound may not be intercepted by any obstruction, and sailing vessels of 20 gross tons or upward with an efficient foghorn; both shall be supplied with an efficient bell.

Section 64. The words "motor boat" include every vessel propelled by machinery and not more than 65 feet in length, except tug boats propelled by steam.

Section 65. Motor boats shall be divided into classes as follows, according to the length, which shall be measured from end to end:

Class I. Less than 26 feet.

Class II. 26 feet or over, but less than 40 feet.

Class III. 40 feet or over, but less than 65 feet.

Section 66. All motor boats shall be provided with a whistle or other mechanical sound-producing device, capable of making a blast of at least two seconds' duration, and, in addition, Classes II and III shall be provided with an efficient foghorn and fog bell, the latter to be at least eight inches across the mouth.

Section 67. A short blast of the whistle shall mean a blast of about one second's duration, and a prolonged blast of the whistle shall mean a blast of from four to six seconds' duration.

Section 68. One short blast of the whistle signifies intention of or assent to the steamer first giving the signal to direct course to her own starboard, except when two steamers are approaching each other at right angles or obliquely, when it signifies intention of steamer which is to starboard of the other to hold course and speed.

Section 69. Two short blasts of the whistle signify intention of or assent to the steamer first giving the signal to direct course to her own port, except when steamers are approaching each other at right angles or obliquely, when the signal signifies desire of or assent to steamer which is to the port of the other to cross the bow of the steamer to starboard.

Section 70. Three short blasts of the whistle shall mean: "My engines are going full speed astern", and when vessels are in sight of one another a steam vessel under way whose engines are going full speed astern shall indicate that fact by three short blasts of the whistle.

Section 71. If, when vessels are approaching each other, either vessel fails to understand the course or intention of the other, from any cause, the vessel so in doubt shall immediately signify the same by making the danger signal, namely: Several short and rapid blasts, not fewer than four, on the steam whistle.

Section 72. Whenever the danger signal is given, the engines of both steamers shall be stopped and backed until the headway of the steamers has been fully checked; nor shall the engines of either steamer be again started ahead until the steamers can safely pass each other, and the proper signals for passing have been given, answered, and understood.

Section 73. Steam vessels are forbidden to use what has become technically known as "cross signals", that is, answering one whistle with two, and answering two whistles with one. In all cases, and under all circumstances, a pilot receiving either of the whistle signals provided in these rules, which for any reason he deems injudicious to comply with, instead of answering it with a cross signal, shall at once sound the danger signal and observe the rule applying thereto.

Section 74. The whistle signals for passing shall be given and answered by vessels, in compliance with these rules, not only when meeting head on, or nearly so, but at all times when the vessels are in sight of each other, when passing or meeting at a distance within a half mile of each other, and whether passing to starboard or port.

Section 75. The whistle signals provided in the rules for steam vessels meeting, passing, or overtaking, are never to be used except when steamers are in sight of each other, and the course and position of each can be determined in the daytime by a sight of the vessel itself, or at night by seeing its lights, except in cases hereafter mentioned, where vessels are approaching a turn in

the Canal. In fog, mist, or heavy rainstorms, when vessels can not see each other, fog signals only must be given.

Section 76. When steam vessels are approaching each other head on, or nearly so, it shall be the duty of each to pass on the port side of the other; and either vessel shall give as a signal of her intention one short and distinct blast of her whistle, and thereupon they shall pass on the port side of each other. But if their courses be so far to starboard of each other as not to be considered as meeting head on, either vessel shall immediately give two short, distinct blasts of her whistle, which the other vessel shall answer promptly with two similar blasts, and they shall pass to starboard of each other; but vessels going in opposite directions, in transit through the Canal shall make it an invariable rule to pass to port of each other, unless there be some special reason to the contrary.

Section 77. When two steamers sight each other going in opposite directions, they shall, when within a mile of each other, be slowed to dead slow speed and each kept on its starboard side of the channel until passed and clear.

Section 78. Vessels other than Canal craft proceeding in the same direction shall not pass each other in the Canal, except between buoys 17 and 78, in Gatun Lake, and then only on advice of the pilot to do so.

Section 79. Self-propelled Canal craft, at work on their stations or under way, will give way and leave the center of the channels clear to sea-going vessels in transit; nothing in this rule shall be construed to warrant a violation of the Rules of the Road, but shall be interpreted to mean that tugs, launches, and small self-propelled craft shall keep close to the side of the Canal and out of mid-channel when large vessels are passing, whenever practicable, without involving any danger to themselves.

Section 80. The foregoing applies only to cases where vessels are meeting end on, or nearly so, in such manner as to involve risk of collision.

Section 81. Vessels approaching the sharper bends in the Canal, particularly when the next reach may be obscured, and all bends in Gaillard Cut, shall, when at a distance of at least half a mile from such bend, slow down and blow one prolonged blast as a notification to other vessels which may be coming from the opposite direction; if there be no reply, the vessel may proceed, but vessels shall not pass each other in the bends of the Canal; if there be a reply to the first blast sounded, both vessels shall stop and proceed cautiously, following the Rules of the Road, but the vessel which has the turn of the bend on her port bow shall have the right to first proceed and make the turn.

Section 82. When steam vessels are moving out from their docks or berths, and other vessels are liable to pass from any direction toward them, the former shall sound a prolonged blast, but immediately after clearing their berths so as to be fully in sight, they shall be governed by the steering and sailing rules.

Section 83. When steam vessels are running in the same direction, and the vessel astern desires to pass on the starboard hand of the vessel ahead, she shall give one short blast, and if the vessel ahead answers with one blast, they shall maneuver accordingly; in case the vessel astern desires to pass on the port hand of the vessel ahead (which, in the narrow waters of the Canal, is the habitual and preferred practice), she shall give two short blasts of the whistle, to be answered by the vessel ahead with two short blasts, and they shall maneuver accordingly; but if the vessel ahead does not think it safe for the vessel astern to attempt to pass at that point, she shall immediately give several short and rapid blasts of the whistle, not fewer than four, and under no circumstances shall the vessel astern attempt to pass the vessel ahead until such time as they have reached a point where it can be safely done, when the vessel ahead shall signify her willingness by blowing the proper signals; the vessel ahead shall in no case attempt to cross the bow or crowd upon the course of the passing vessel.

Section 84. Every vessel coming up with another vessel from any direction more than two points abaft her beam shall be deemed to be an overtaking vessel, and no subsequent alteration of the bearing between the two vessels

shall make the overtaking vessel a crossing vessel within the meaning of these rules, or relieve her of the duty of keeping clear of the overtaken vessel until she is finally passed and clear. If the overtaking vessel does not know with certainty whether she is forward of or abaft this bearing from the other vessel, she should, if in doubt, assume that she is an overtaking vessel and keep out of the way.

Section 85. Unless specially authorized by the Governor, no owner, master or operator of floating craft, except such as may belong to or be chartered by The Panama Canal, or such as may be in transit under charge of a Government pilot, shall cause or permit such craft to enter, navigate or be present in Gaillard Cut. Officers and agents of the Canal shall have power and authority to arrest and take into custody, with or without process, any person or persons who may violate this rule.

Section 86. The movement of vessels in Gaillard Cut will be regulated by the Port Captain, Balboa, through the signal stations and Pedro Miguel Locks.

Section 87. Before passing a vessel, lighter, scow, dredger, pile driver or anything that is afloat, whether moored, anchored or under way, vessels shall slow down in plenty of time to pass at the slowest speed at which they can be steered.

Section 88. When in or near any lock a ship will, under no circumstances, except in a sudden emergency, have a speed of more than two knots.

Section 89. The following speeds shall not be exceeded by vessels in transit through the Canal:

	Knots.
Colon to Gatun Locks	6
Gatun Lake in the 1,000-foot channels	15
Gatun Lake in the 800-foot channels	12
Gatun Lake in the 500-foot channels	10
Rounding Bohio and Darien bends	6
Gaillard Cut	6

Rounding bends—Slowest speed at which steerageway can be maintained.

Miraflores Lake:

Vessels 360 feet or less in length and less than 20 feet draft shall not cross the Lake in less than 15 minutes.

Larger vessels shall not cross the Lake in less than 20 minutes.

Vessels of exceptional size or displacement shall not cross the Lake in less than 25 minutes.

	Knots.
Miraflores Locks to Pacific entrance of Canal	6
Entering or leaving port	6

Section 90. Under no condition will steamers be allowed to run side by side in any part of the Canal waters, both going in the same direction, except for the time necessary for one steamer to pass ahead of another, after the proper signals have been made and answered. Should an occasion arise, however, where steamers may find themselves running side by side, or nearly so, in the same direction, in the open waters or elsewhere, the steamer on the right or starboard side shall have the right of way, and the steamer on the left or port side shall check her way, drop astern, and keep at a safe distance.

Section 91. When two steamers are approaching each other at right angles or obliquely so as to involve risk of collision, other than when one steamer is overtaking another, the steamer which has the other on her port side shall hold her course and speed; and the steamer which has the other on her starboard side shall keep out of the way of the other by directing her course to starboard so as to cross the stern of the other steamer, or, if necessary to do so, slacken her speed, or stop, or reverse. The steamer having the other on her own port bow shall blow one blast of her whistle as a signal of her intention to cross the bow of the other, holding her course and speed, which signal shall be promptly answered by the other steamer by one short blast of her whistle as a signal of her intention to direct her course to starboard so as to cross the stern of the other steamer or otherwise keep clear.

Section 92. If, from any cause whatever, the conditions covered by this situation are such as to prevent immediate compliance with each others' signals, the misunderstanding or objection shall at once be made apparent by blowing the danger signal, and both steamers shall be stopped and backed, if necessary, until signals for passing with safety are made and understood.

Section 93. Where, by any of these rules, one of two vessels is to keep out of the way, the other shall keep her course and speed.

Section 94. Every vessel which is directed by these rules to keep out of the way of another vessel, shall, if the circumstances of the case permit, avoid crossing ahead of the other and shall, on approaching her, if necessary, slacken her speed, stop, or reverse.

Section 95. When a steam vessel and a sailing vessel are proceeding in such directions as to involve the risk of collision, the steam vessel shall keep out of the way of the sailing vessel.

Section 96. When two sailing vessels are approaching one another so as to involve risk of collision, one of them shall keep out of the way of the other as follows:

(a) A vessel which is running free shall keep out of the way of a vessel which is close-hauled.

(b) A vessel which is close-hauled on the port tack shall keep out of the way of a vessel which is close-hauled on the starboard tack.

(c) When both are running free, with the wind on different sides, the vessel which has the wind on the port side shall keep out of the way of the other.

(d) When both are running free with the wind on the same side, the vessel which is to windward shall keep out of the way of the vessel which is to leeward.

(e) A vessel which has the wind aft shall keep out of the way of the other vessel.

Section 97. Notwithstanding anything contained in these rules, every vessel overtaking another shall keep out of the way of the overtaken vessel.

Section 98. Sailing vessels under way shall keep out of the way of sailing vessels or boats fishing with nets, or lines, or trawls. This rule shall not give to any vessel or boat engaged in fishing the right of obstructing a fairway used by vessels other than fishing vessels or boats.

Section 99. Nothing in these rules shall exonerate any vessel, or the owner or master or crew thereof, from all the consequences of any neglect of any precaution which may be required by the ordinary practice of seamen, or by the special circumstances of the case.

Section 100. In obeying or construing these rules, due regard shall be had to all dangers of navigation and collision, and to any special circumstances which may render a departure from the above rules necessary in order to avoid immediate danger.

Section 101. In fog, mist or heavy rainstorm, whether by day or night, signals shall be given as follows:

(a) A steam vessel under way, except when towing other vessels or being towed, shall sound, at intervals of not more than one minute, on the whistle or siren, a prolonged blast.

(b) A vessel when towing other vessels shall sound, at intervals of not more than one minute, on the whistle or siren, three blasts in succession, namely: one prolonged blast followed by two short blasts.

(c) Seagoing dredges, when dredging, shall give four blasts in succession: One prolonged blast followed by three short blasts.

(d) A vessel towed may give, at intervals of not more than one minute, on the foghorn, a signal of three blasts in succession, namely: One prolonged blast followed by two short blasts and she shall not give any other.

(e) A sailing vessel under way shall sound, at intervals of not more than one minute, when on the starboard tack one blast, when on the port tack two blasts in succession, and when the wind is abaft the beam three blasts in succession.

(f) All rafts or other water craft, not herein provided for, navigated by hand power, horsepower, or by the current of the river, shall sound a blast on the foghorn, or equivalent signal, at intervals of not more than one minute.

(g) A vessel at anchor shall, at intervals of not more than one minute, ring the bell rapidly for about five seconds.

Section 102. Every vessel shall in fog, mist or heavy rainstorm, go at a moderate speed, slow down, or stop, having due regard to the existing circumstances and conditions.

Section 103. A steam vessel hearing, apparently forward of her beam, the fog signal of a vessel the position of which is not ascertained, shall, as far as circumstances of the case admit, stop her engines, and then navigate with caution until the danger is over.

Section 104. In thick and foggy weather vessels will not be allowed to enter the Canal or leave the locks or mooring stations until the weather has cleared. Vessels in transit, when overtaken by thick or foggy weather, must immediately take every precaution and make preparation to anchor or moor at the first available place, and so remain until the weather clears. Vessels equipped with radio, when overtaken by thick or foggy weather, should immediately so report.

Section 105. Masters of vessels shall have prepared accurate tables showing their compass error, before they will be allowed to enter the Canal. The general direction of the Canal and its reaches is southeasterly and northwesterly, and it would be well, if an opportunity offers, for vessels to obtain an accurate deviation table on these courses, while in the approximate latitude and vicinity of the Canal.

Section 106. Upon the first approach of thick weather of any kind, the position of the ship must be accurately checked and the closest possible reckoning be kept until the weather clears, or she shall have been moored or anchored.

Section 107. Unnecessary sounding of the steam whistle is prohibited within the waters of the Canal Zone; and any licensed officer in charge of a steamer who authorizes or permits such unnecessary whistling may, upon conviction thereof before a Board of Local Inspectors having jurisdiction, be suspended from acting under his license.

Section 108. The word "visible" in these rules, when applied to lights, shall mean visible on a dark night with a clear atmosphere.

Section 109. The rules concerning lights shall be complied with in all weathers from sunset to sunrise, and during such time no other lights which may be mistaken for the prescribed lights shall be exhibited.

Section 110. A steam vessel when under way shall carry:

(a) On or in front of the foremast, or, if a vessel without a foremast, then in the fore part of the vessel, a bright white light so constructed as to show an unbroken light over an arc of the horizon of 20 points of the compass, so fixed as to throw the light 10 points on each side of the vessel, namely: From right ahead to two points abaft the beam on either side, and of such a character as to be visible at a distance of at least five miles.

(b) On the starboard side a green light so constructed as to show an unbroken light over an arc of the horizon of 10 points of the compass, so fixed as to throw the light from right ahead to two points abaft the beam on the starboard side, and of such a character as to be visible at a distance of at least two miles.

(c) On the port side a red light so constructed as to show an unbroken light over an arc of the horizon of 10 points of the compass, so fixed as to throw the light from right ahead to two points abaft the beam on the port side, and of such a character as to be visible at a distance of at least two miles.

(d) The said green and red side lights shall be fitted with inboard screens projecting at least three feet forward from the light, so as to prevent these lights from being seen across the bow.

(e) On the stern a white light so constructed as to show astern over an unbroken arc of twelve points, six points on each side of the fore and aft line of the vessel. This light should be at about the same height as the side lights and shall be visible for at least one mile.

(f) A seagoing steam vessel shall carry an additional white light similar in construction to the light mentioned in subdivision (a). These two lights shall be so placed in line with the keel that one shall be at least 15 feet higher than the other, and in such a position with reference to each other that the lower light shall be forward of the upper one. The vertical distance of these lights shall be less than the horizontal distance.

Section 111. A steam vessel when towing another vessel shall, in addition to her side lights, carry two white lights in a vertical line, one over the other, not less than three feet apart, and when towing more than one vessel, shall carry an additional white light three feet above or below such lights, if the length of the tow measuring from the stern of the towing vessel to the stern of the last vessel towed exceeds 600 feet. Each of the lights shall be of the same construction and character, and shall be carried in the same position as the white light described in Article 110 (a).

Section 112. A towing vessel may carry a small white light abaft the funnel, aftermast, or at the stern, for the vessel towed to steer by, but such light shall not be visible forward of the beam.

Section 113. A sailing vessel under way or vessel being towed shall carry the red and green lights described in Article 110 (b) and (c). They shall never carry the white lights described in Article 110, but a sailing vessel which is being overtaken by another vessel shall show from her stern to such last-mentioned vessel a white light or a flare-up light.

Section 114. Lights to be carried by motor boats are as follows:

Class I. (Less than 26 ft. in length).

(1) A white light aft to show all around the horizon.

(2) A combined lantern in the forepart of the vessel and lower than the white light aft showing green to starboard and red to port, so fixed as to throw the light from right ahead to two points abaft the beam on their respective sides.

Classes II & III. (26 ft. and over but less than 65 ft.)

(1) A bright white light in the fore part of the vessel as near the stem as practicable, so constructed as to show an unbroken light over an arc of the horizon of twenty points of the compass, so fixed as to throw the light ten points on each side of the vessel, namely, from right ahead to two points abaft the beam on either side. The lens shall be of not less than the following dimensions:

Class II: 19 square inches.
Class III: 31 square inches.

(2) A white light aft to show all around the horizon.

(3) On the starboard side a green light so constructed as to throw an unbroken light over an arc of the horizon of ten points of the compass so fixed as to throw the light from right ahead to two points abaft the beam on the starboard side. On the port side a red light so constructed as to show an unbroken light over an arc of the horizon of ten points of the compass, so fixed as to throw the light from right ahead to two points abaft the beam on the port side. The lenses in the said side lights shall be of not less than the following dimensions:

Class II: 16 square inches.
Class III: 25 square inches.

All lenses shall be fresnal or fluted. The said lights shall be fitted with inboard screens of sufficient height and so set as to prevent these lights from being seen across the bow and shall be of not less than the following lengths:

Class II: 18 inches.
Class III: 24 inches.

Motor boats when propelled by sail and machinery or under sail alone, shall carry the colored lights but not the white lights prescribed above.

Section 115. Whenever, as in the case of vessels of less than 10 gross tons under way during bad weather, the red and green side lights can not be fixed, these lights shall be kept at hand lighted and ready for use, and shall, on the approach of or to other vessels be exhibited on their respective sides in sufficient time to prevent collision, in such manner as to make them most visible, and so that the green light shall not be seen on the port side nor the red light on the starboard side, nor, if practicable, more than two points abaft the beam on their respective sides. To make the use of these portable lights more certain and easy, the lanterns containing them should each be painted outside with the color of the light which they respectively contain, and shall be provided with proper screens.

Section 116. Fishing vessels less than 10 gross tons, when under way, and not having their nets, dredges or lines in the water, shall carry the usual white light eight feet above the deck and shall have ready at hand a lantern with a green glass on one side and a red glass on the other side, and on approaching or being approached by another vessel, such lantern shall be exhibited in sufficient time to prevent collision, so that the green light shall not be seen on the port side nor the red light on the starboard side.

Section 117. All fishing vessels and fishing boats of 10 gross tons or upward, when under way and not having their nets, trawls, dredges, or lines in the water, shall carry and show the same lights as other vessels under way.

Section 118. All vessels, when trawling, dredging or fishing, with any kind of dragnets or lines, shall exhibit, from some part of the vessel where they can be best seen, two lights. One of these lights shall be red and the other shall be white. The red light shall be above the white light, and shall be at a vertical distance from it of not less than 6 feet and not more than 12 feet; and the horizontal distance between them, if any, shall be not more than 10 feet. These two lights shall be of such a character and contained in lanterns of such construction as to be visible all around the horizon, the white light at a distance of not less than three miles and the red light not less than two miles.

Section 119. A vessel under 150 feet in length when at anchor shall carry forward, where it can best be seen, but at a height not exceeding 20 feet above the hull, a white light, in a lantern constructed so as to show a clear, uniform and unbroken light visible all around the horizon at a distance of at least one mile.

Section 120. A vessel of 150 feet or upward in length when at anchor shall carry in the forward part of the vessel, at a height of not less than 20 feet and not exceeding 40 feet above the hull, one such light, and at or near the stern of the vessel, and at such a height that it shall not be less than 15 feet lower than the forward light, another such light.

Section 121. The length of the vessel shall be deemed to be the length appearing in her certificate of registry.

Section 122. Every vessel may, if necessary in order to attract attention, in addition to the lights which she is by these rules required to carry, use a flare-up light or use any detonating signal that cannot be mistaken for a distress signal.

Section 123. Every barge, lighter, canal boat, or scow that is moored alongside of any ship or another barge, or to the side of the Canal, or to any wharf, or lying at anchor on the navigable waters of the Canal Zone, shall show, between the hours of sunset and sunrise, a white light on the bow and stern, at least three feet above the deck of said vessel, and not more than eight feet from the bow and stern thereof.

Section 124. Nothing in these rules shall interfere with the operation of any special rules made by the government of any nation with respect to additional station and signal lights for two or more ships of war or for vessels sailing under convoy, or with the exhibition of recognition signals adopted by shipowners, which have been authorized by their respective governments, and duly registered and published, unless specific instructions are given by the Canal authorities to discontinue the use of such lights while in transit through the Canal.

Section 125. Vessels propelled by machinery which are moored or anchored shall display by day, forward where it can be best seen, one black ball or shape not less than two feet in diameter.

Section 126. A steam vessel proceeding under sail only, but having her funnel up, may carry in daytime, forward, where it can best be seen, one black ball or shape two feet in diameter.

Section 127. A vessel which from any accident is not under command shall carry at the same height as the white light mentioned in Article 110 (a), where they can best be seen, and if a steam vessel in lieu of that light, two red lights, in a vertical line one over the other, not less than six feet apart, and of such character as to be visible all around the horizon at a distance of at least two miles; and shall by day carry in a vertical line one over the other, not less than six feet apart, where they can best be seen, two black balls or shapes, each two feet in diameter.

Section 128. Seagoing suction dredges, when under way and dredging, shall carry, besides the lights prescribed for steamers under way, between the two masts where they can best be seen, two red lights approximately the same height as the masthead light of a steamer, in a vertical line one over the other, not less than six feet apart, and of such a character as to be visible all around the horizon at a distance of at least two miles; and they shall, by day, carry between the two masts where they can best be seen, in a vertical line one over the other, not less than six feet apart, two black balls or shapes, each two feet in diameter.

Section 129. Seagoing suction dredges, when dredging is stopped and the dredge is proceeding either to or from her dumping ground, either loaded or light, shall, at night, extinguish the two red lights and, by day, lower the black balls.

Section 130. Seagoing suction dredges, while actually engaged in dredging, as shown by the black balls, or red lights, shall have the right of way over all other vessels, but in the narrower reaches and in Gaillard Cut they shall give way to seagoing ships. When not dredging, as shown by the absence of the black balls or red lights, they shall observe all the Rules of the Road and have no special privilege.

Section 131. Ferryboats, propelled by machinery and navigating the waters of the Canal Zone, shall carry the range lights and the side lights required by law to be carried on steam vessels.

Section 132. Barges, canal boats, scows, and lighters being towed astern of steam vessels, when towing singly or what is known as tandem towing, shall each carry a white light on the bow and a white light on the stern.

Section 133. When towed with a hawser two or more abreast, when in one tier, they shall carry a white light on the bow and a white light on the stern of each of the outside boats; when in more than one tier, each of the outside boats shall carry a white light on its outer bow; and the outside boats in the last tier shall each carry, in addition, a white light on the outer after part of the stern.

Section 134. Barges, etc., towed alongside a steam vessel, if on the starboard side of said steam vessel, shall display a white light on her own starboard bow, and if on the port side of said steam vessel, shall display a white light on her own port bow; and if there be more than one barge or canal boat alongside, the white light shall be displayed from the outboard side of the outside barge or canal boat.

Section 135. Rafts propelled by hand power, or by the current of the river or tide, or which shall be anchored in or near the channel or fairway, or proceeding in tow of a steam vessel, shall carry one white light on each corner of the raft.

Section 136. Rowboats and cayucas, whether under oars or sail, shall carry a white light, visible all around the horizon, at an elevation above the surface of the water of at least three feet.

Section 137. The white lights required by these rules for barges, canal boats, scows, lighters, rafts, rowboats and cayucas shall be visible all around the horizon at a distance of at least one mile. The lights for rafts shall be suspended so that they shall be not less than eight feet above the surface of the water.

Section 138. Any piece of floating equipment that is operated by means of fore and aft, and side chains, shall carry, when the chains are taut, a black ball on each side in some conspicuous place at least eight feet above the deck, and near the positions of the side chains; at night these balls shall be replaced by a red light and which shall show all around the horizon and be plainly visible at a distance of at least one mile.

Section 139. When a steamer wishes to pass any such equipment at a point where it might foul its side chains, it should so signify by whistle signals, as provided in these rules, and the piece of equipment concerned shall immediately lower its chain on the side asked for by the steamer, indicating its fulfillment of this by, in the daytime, lowering the ball, or, in the night, extinguishing the red light.

Section 140. If the craft is unable to lower its side chain, or should it consider it dangerous for the steamer to pass on the side asked for, it will blow the danger signal, when the steamer will stop until the ball is lowered or light extinguished.

Section 141. Any master or pilot of any steam vessel who shall flash, or cause to be flashed, the rays of a searchlight into the pilot house of a passing vessel shall be deemed guilty of misconduct and shall be liable to have his license suspended or revoked; in general, searchlights shall not be used for navigation purposes in transit through the Canal.

Section 142. All vessels having a specially dangerous cargo, such as explosives or oils of any kind shall fly a red flag at the masthead by day and show a red light at night.

Section 143. When a vessel is in distress and requires assistance from other vessels, or from the shore, the following shall be the signals to be used or displayed by her, either together or separately, namely:

FIRST: Flames, as from a burning tar barrel, oil barrel, etc.

SECOND: A continuous sounding with any fog-signal apparatus, or firing a gun.

THIRD: Rockets or shells showing stars, fired one at a time, at short intervals.

Section 144. In connection with these, vessels may use the international code and special signals with shapes.

Section 145. When lighters, barges, scows, or canal boats are to be moored to any wharf, or along the shore in the channel in the navigable waters of the Canal Zone, they shall not be moored more than two deep.

Section 146. Except in the terminal harbors or the authorized anchorages, vessels shall not moor alongside one another in any part of the Panama Canal. In the terminal harbors and authorized anchorages more than two vessels shall not be moored alongside each other except by special permission of the Port Captain and except that additional power hoists may be moored alongside two vessels so connected, while actually engaged in transshipping cargo.

Section 147. Nothing in the above rule shall be construed as affecting the right of The Panama Canal to moor barges used in canal construction and maintenance in any manner that may be deemed proper.

Section 148. Every piece of floating equipment, except seagoing suction dredges, that is engaged in excavating, or preparing to excavate in the Canal, whose position is stationary, or moving from time to time over the face of the shoal on which it is working, shall have the prior right to such position, and it shall be unlawful for any person or persons, navigating a ship or otherwise, to foul such equipment or its moorings in any way whatever.

Section 149. All barges moved from berth to berth along wharves or banks of the Canal shall be moved by a proper towboat. They shall not be moved by hand power in the navigable fairway of the Canal, except to preserve life or property in peril.

5. MISCELLANEOUS.

Section 150. While in a terminal port or in transit through the Canal no vessel will be allowed to throw any ashes, cinders, ballast, solid matter of any kind, boxes, paper, or anything that will float, heavy slops or anything that will tend to deface or tend to make the waters of the Canal insanitary. This does not apply to water-closet chutes, nor to the water used in cooking or in cleaning tableware. Before arrival from sea at either terminal port, vessels should dump ashes and get rid of all garbage, trash and slops.

Section 151. Ships shall not pump engine or fireroom bilges while in Canal Zone waters or pump oil of any kind overboard.

Section 152. Ships alongside wharves shall not place any garbage on the docks or wharves except in covered galvanized iron cans which are supplied for that purpose. In case additional garbage cans are required, the Port Captain should be notified. Ships at docks desiring to land trash, such as boxes, paper, sweepings, etc., can do so by requesting a dump car which will be put alongside to receive such matter.

Section 153. Vessels anchored or moored in the harbors for considerable lengths of time may get rid of garbage of all kinds by requesting a garbage scow to be put alongside.

Section 154. No vessel shall make fast or run any lines to any marker, buoy, beacon, or other aid to navigation. Vessels must use every precaution to guard against injury to any of the aids to navigation in Canal waters; should any damage or injury be inflicted, it shall be reported immediately to the Port Captain.

Section 155. Vessels will be held liable for all damage done to the Canal or any part of its plant or equipment. In case of the sinking in Canal waters of any floating or other equipment belonging to private persons or corporations that creates or tends to create an obstruction, the Canal authorities may order the removal of the obstruction at once, or remove it without waiting for action by the owners and at the latters' expense.

Section 156. Should a vessel go aground, collide, be in imminent danger, or meet with any serious accident while in Canal waters, the Canal authorities shall have the right to supervise and direct all operations in relation thereto, that may be necessary to float her or clear the wreckage; but the master and all others under him, as well as every appliance on board the ship which may be of use, shall be placed at the disposal of the Canal authorities without additional charge or claim against the Canal.

Section 157. Vessels wishing to unload or load ballast must have proper chutes, so arranged as to prevent ballast from falling overboard.

Section 158. No warp or line shall be passed across any channel or dock so as to obstruct the passage of vessels or cause any interference with the discharging of cargoes.

Section 159. Any damage caused by vessels or their mooring cables to the works of any harbor will be repaired at the expense of the parties responsible.

Section 160. If a vessel occupying a berth at a wharf or pier, with or without the consent of the Port Captain, fails to vacate such berth when ordered by him; or when not loading or unloading, fails to make way for another vessel that wishes to load or unload, the Port Captain shall then cause such vessel to be moved to some other berth, and the expense of such removal shall be paid by the vessel, and in case of neglect or refusal to pay such expense upon demand, it may be recovered in an action before any court having jurisdiction.

Section 161. Material of any kind, placed on any pier, bulkhead or other property, must be removed therefrom within 36 hours, unless the Port Captain extends the time. All materials encumbering any pier, bulkhead or other property, after the time designated for the removal thereof shall have expired, will be liable to be removed by the Port Captain to any warehouse or yard, at the sole risk and expense of the owner of such materials, and all expenses incurred for such removal and storage, or otherwise, shall become a lien thereon, and such materials will not be delivered to the owner until all expenses have been paid.

Section 162. The owners, lessees, or occupants of any covered pier, wharf or bulkhead, shall not use such pier, wharf, or bulkhead for the permanent storage of material of any kind.

Section 163. Covered piers, wharfs, and bulkheads are intended for the protection of merchandise and cargo in transit, and such merchandise and cargo must be removed therefrom within 36 hours, unless the Port Captain may extend the time. Any order to remove such material must be complied with promptly.

Section 164. No fishing nets will be allowed in any place in the Canal, whenever in the opinion of the Marine Superintendent such nets interfere, or might interfere, with navigation, and it shall be the duty of the owner thereof, upon notification, to remove them immediately.

Section 165. Anyone finding any buoy out of position, or lights not working properly, should report it immediately to the Port Captain.

Section 166. Steamers while within a Canal harbor must take all precautions to avoid the issue of sparks or excessive smoke, and vessels will be held liable for all damage resulting therefrom.

Section 167. No pitch, tar, turpentine, or other combustible, shall be boiled on any wharf, or on board any vessel without permission of the Port Captain.

Section 168. In case of fire on board a vessel, all masters of other vessels shall render such assistance as may be in their power.

Section 169. A vessel anchored or moored in the harbor or lying at a dock must at all times, night or day, have on board a sufficient number of men to take care of the vessel.

Section 170. Ships at fueling berths must keep steam up and crew on board, ready to move on short notice, unless special authority to the contrary has been obtained beforehand from the Port Captain.

Section 171. No vessel shall unload lumber, timber, or piles into the waters of a harbor without permission of the Port Captain, who shall designate where such material shall be rafted, nor shall any vessel tow a raft in the channel or harbors of the Canal without such permission.

Section 172. Lighters, barges, scows, and other vessels shall be anchored in such places as the Port Captain may direct, and shall be at all times under his supervision and direction.

Section 173. It shall be unlawful for any person, without first having secured a pilot's license from the Government of the Canal Zone, to navigate in Canal Zone waters any steam vessel of more than 25 gross tons.

Section 174. No privately owned craft may operate in Canal Zone waters until those not propelled in whole or in part by machinery are registered and numbered, and those propelled in whole or in part by machinery are registered and certificated. When numbers have been assigned, they shall be displayed in a conspicuous place, in the prescribed form.

Section 175. An applicant for a license to operate or navigate a motor vessel of any type or tonnage shall pass a visual examination, unless he has already been examined and granted a marine license by the Board of Local Inspectors.

Section 176. All sail boats, row boats, pangas, or cayucas carrying passengers in Canal Zone waters for which any compensation is collected, shall be inspected annually and each such craft shall have its cubic capacity cut in the hull in letters not less than 1½ inches high, and the paint over the letters shall be of a different color from the other paint of the hull.

Section 177. The number of persons to be carried by these boats shall be determined by dividing the gross cubic foot capacity by 12 for all boats under 20 feet and by 10 for all boats 20 feet or over in length. All boats to carry a life preserver for each passenger allowed.

Section 178. All vessels moored to wharves, whether loading or unloading cargo or in the ordinary way of business, shall be moored to the wharves with rope hawsers only, and it shall be unlawful for any chain or wire hawsers to be used on any public wharf in the Canal Zone without the specific permission of the Port Captain.

Section 179. All vessels, whether commercial or otherwise, moored to wharves in the Canal Zone, shall be compelled to keep watch at night and to have suitable fire-fighting apparatus on hand.

Section 180. Whenever it shall become necessary to remove any especially inflammable cargo from ships at public wharves of the Canal Zone, the Port Captain shall be notified at least two hours before such cargo shall be discharged upon the wharf, so that proper means can be provided to dispose of this class of material at the earliest possible moment.

Section 181. No person or persons shall take possession of or use for any purpose, make fast to or build upon, alter, deface, destroy, move or injure any part of the plant or equipment, whether floating or otherwise, belonging to the Canal.

Section 182. Sailing directions for the Canal and approaches will be found in Hydrographic Office Publications No. 174, South America Pilot, Volume III, and No. 130, Central America and Mexico Pilot (East Coast).

II. PORT CAPTAINS.

1. GENERAL.

Section 183. The Marine Division of the Department of Operation and Maintenance, in charge of the Marine Superintendent, is the organization in The Panama Canal through which all marine traffic and service to shipping are handled. This division is represented at each terminal port by a Port Captain, who is directly in charge of all such matters, and all local questions relating thereto shall be referred to him.

Section 184. Shipmasters can place themselves in direct touch with any Canal utility, in whatever connection, most conveniently and promptly through the Port Captains.

Section 185. Every effort is made by The Panama Canal to expedite traffic and to fill promptly the needs of shipping. Delays in getting in touch with local facilities on arrival and in the necessary settlement of accounts prior to departure are reduced to a minimum, but in this connection the active and intelligent co-operation of shipmasters and local agents, as well as owners and operators, is most essential and is earnestly solicited.

Section 186. Masters can best assist by thoroughly familiarizing themselves with the Canal Regulations and carrying them out, particularly as to the following:

(a) Reporting accurately by radio, as far in advance as practicable, the time of arrival; requirements; draft of ship; amount of local cargo; number and class of local and through passengers, if any; sanitary condition of vessel; sickness, if any, on board; number and class of persons subject to quarantine detention, if any.

(b) Assisting the boarding party in quickly carrying out their duties.

(c) Advising the pilot accurately as to the maneuvering qualities and peculiarities of the ship and of any defects.

(d) Having ship properly trimmed.

(e) Arriving, if possible, off the entrance in the early morning or forenoon.

Section 187. Agents can materially assist by keeping the Port Captains informed of the prospective arrival and requirements of their vessels, and by keeping ships and their principals fully informed on all matters pertaining to the Canal.

Section 188. The co-operation of ship owners and operators is valuable in the above particulars, both to themselves and to the Canal, and in this connection their attention should be directed particularly to the load and trim of their ships, the efficient condition of their motive machinery, steering gear, navigating and piloting appurtenances, ground tackle, mooring lines, bitts and chocks; and the efficiency of the personnel.

Section 189. Information and supplies of Panama Canal printed forms can readily be obtained from the Canal or from the Chief of Office, The Panama Canal, Washington, D. C.

2. SERVICES AND SUPPLIES.

Section 190. Bunkers (coal, oil, Diesel oil, gasoline), lubricants, ships' chandlery, fresh water suitable for drinking and boiler use, engineering supplies, every kind of fresh and dry provisions, meats, cold storage and dairy products, ice, ice cream and fresh bakery products, can be obtained in any quantity necessary for ship's use. Orders sent in advance by radio, cable, or mail, can be delivered on arrival, and orders filed on arrival will be delivered promptly, but in the case of ships transiting immediately, deliveries are made at the port of departure. Docking is required only for bunkering.

Section 191. Water in Gatun Lake between Gatun and Darien, is suitable for boiler use, but not for drinking, and can be taken in by vessels during transit, with the knowledge of the pilot, provided the trim of the ship is not altered materially thereby or the ship delayed.

Section 192. A steam laundry, available to ships and capable of doing any kind of laundry work, is operated by the Canal. Laundry work sent ashore from transiting ships in the early morning at entrance terminal will be done and delivered at the departure terminal, without delaying the ship.

Section 193. Tugs, for outside or Canal work, lighters and launches can be obtained on application.

Section 194. Dry docking and any kind of repairs or alterations for ships, and their equipment, of any size and description are available. Requests for such work can be made at any hour through the Port Captain, or to the Mechanical Division direct. Any information desired on the subject can be obtained in the same way. Work and information pertaining thereto should be requested as far in advance as possible.

Section 195. The duty on repairs done to American ships in foreign ports is not applicable to such work done in the Canal Zone.

Section 196. Repair and dry docking plants are in the hands of experts, and work is done thoroughly and expeditiously and at moderate cost. In dry docking, breakdowns are given preference over routine work and mail steamers over cargo vessels.

Section 197. Charges for dry docking commercial vessels are based on gross tonnage for steam and motor vessels and net tonnage for sailing vessels, Panama Canal measurement; for men of war charges are based on displacement.

Section 198. Masters and officers of ships going into dry dock must familiarize themselves with the "Rules for Docking Vessels in Dry Docks Belonging to The Panama Canal." These are furnished in pamphlet form.

Section 199. In general, ships under repair are required to dock at the repair wharves, but no wharfage is charged during actual repair work. Minor repairs can be effected at commercial piers or at anchor.

Section 200. All ships shall be fumigated immediately prior to going into dry dock.

Section 201. Floating cranes up to a capacity of 250 tons are available.

Section 202. A wrecking and salvage outfit, ready for immediate service, is maintained for use at any point within a reasonable distance of the Canal.

Section 203. The best of hospital service, medical and surgical, public and private, is available to ships, and the only formality necessary to obtain hospital treatment is, in the case of American seamen, a master's certificate, and for foreign seamen, a letter of identification, assuming responsibility for hospital charges.

Section 204. Canal physicians will visit ships on application to the Port Captain or to the nearest hospital or dispensary.

Section 205. In cases of emergency, free medical advice may be obtained by ships at sea by radio from The Panama Canal, through the radio stations at Colon, Balboa, or Cape Mala. Such message should be addressed: "Govt. C.B., Medico, Pancanal," state briefly and clearly the symptoms to be treated, and be signed by the master.

Section 206. The accuracy of the advice given is not guaranteed nor will any responsibility be assumed by The Panama Canal or medical authorities thereof, in this connection. Neither will The Panama Canal nor the radio stations guarantee the accuracy of the transmission of such messages. However, every effort is made to give valuable advice quickly and accurately.

Section 207. No receiving or sending charge is imposed by the short stations for this service and ships should make none.

Section 208. Duly authorized notaries public for the Canal Zone are employed in the offices of the Port Captains.

Section 209. Branches of the U. S. Hydrographic Office are maintained in the Port Captains' offices, where every description of hydrographic and meteorologic information is obtainable gratis.

Section 210. Charts and sailing directions are for sale.

Section 211. Chronometer and barometer comparisons are obtainable gratis.

Section 212. Charges for service and supplies are published and furnished to all interested parties, who should keep posted up to date on current tariffs and price lists, which are subject to change without notice.

Section 213. Annual contracts for supplies and services to shipping will not be entered into by the Canal.

Section 214. The payment of bills for all services rendered by the Canal or Panama Railroad shall be made to the Collector of The Panama Canal at either Cristobal or Balboa; except that deposits to cover tolls and other bills may be made with the Treasurer of the United States or with a Federal Reserve Bank in the United States to the credit of the Collector, in lieu of cash on the Isthmus. All payments in cash must be made in United States currency.

Section 215. All charges to be incurred must be covered by deposits of funds before service will be rendered or supplies furnished, and all bills must be settled in full before a vessel will be allowed to clear.

Section 216. Bills for supplies and services of all kinds will be submitted to the Collector by the department furnishing supplies or rendering services. Those for supplies or services to ships of established lines with agencies on the Isthmus, will be submitted to local agents if so desired.

Section 217. The most satisfactory way of prepaying tolls and other charges is by deposit with a Federal Reserve Bank in the United States, which should be requested to cable the Isthmus immediately, giving the amount of the deposit, the ship for which it is made, and the name of the depositor. The cost of this cable service is $5 and the amount is charged against the deposit. It is recommended that the deposit be slightly more than sufficient to cover tolls and other charges, so that in case the latter exceed the amount anticipated the vessel need not be delayed. It is also well to make the deposit several days in advance of the vessel's expected arrival in Canal waters, in order that she may not be held pending receipt of notice of deposit.

Section 218. As soon as possible after the ship has passed through the Canal the total amount chargeable against the vessel is deducted from the amount of the deposit and a statement of the account is sent to the depositor. Any unexpended balance is remitted to the depositor with the statement, except where it is desired to apply the balance on charges against other vessels.

Section 219. A shipping firm having offices in a port where there is a Federal Reserve Bank can make its deposits direct, while those whose offices are elsewhere, or in foreign countries, can remit through their bankers or through other shipping agencies. Those sending vessels through the Canal at frequent intervals, may make a lump sum deposit and keep an open account with The Panama Canal, but should specify by name the vessels to which such deposit is to apply.

3. ADMEASUREMENT.

Section 220. Vessels shall provide themselves with the proper tonnage certificate, based upon the rules laid down for Panama Canal measurement.

Section 221. In addition to the admeasurers at the Canal, the Collectors of Customs in the large seaport cities of the United States, and certain properly designated officials abroad, have been authorized to measure vessels under The

Panama Canal rules and issue the required certificate. In case a vessel is not so provided, she should have a full set of plans and a copy of the measurements which were made when she received her national tonnage certificate, and also the tonnage certificate itself.

Section 222. Vessels which have not been measured arriving at the Canal for transit will be measured before transiting, with consequent delay and at a charge of $50 each.

Section 223. The rules for the measurement of vessels will be found in the Proclamation of the President of the United States, dated November 21, 1913.

Section 224. The admeasurers at the Canal must know the United States net registered tonnage, or the equivalent thereof and The Panama Canal net tonnage of every vessel arriving for transit. Tolls are based on net tonnage, and the rates will be found in the "Panama Canal Tariff".

Section 225. Under all conditions, the Canal authorities reserve the right to check and correct any measurement or certificate issued elsewhere.

Section 226. In order for vessels "in ballast without passengers or cargo" to benefit by the reduced rate for toll charges, they must not have on board fuel in excess of the volume deducted on their Panama Canal Tonnage Certificates (Page 2, item 1 (b) or 2 (b) under Propelling Power Deduction) for bunker space. For convenience this volume is converted into long tons and placed at the bottom of page 2 on all certificates issued, checked or corrected at the Canal.

4. ACCIDENTS, DEFECTS AND CLAIMS.

Section 227. No claim against The Panama Canal for damages on account of injury to a vessel or its cargo while in Canal Zone waters, arising from the operation of the Canal (other than the passing of the vessel through the locks) shall be allowed, unless it shall be determined by the Governor of The Panama Canal that such injury was due to the negligence or want of care on the part of agencies or employees of The Panama Canal.

Section 228. In case a vessel, or its passengers or cargo, meets with an accident or sustains any damage which may be the basis of any claim against The Panama Canal, it shall be reported immediately to the Port Captain, who will refer it to the Board of Local Inspectors, and the Board, or a member thereof, shall hold an investigation as soon as possible.

Section 229. The Board of Local Inspectors, or any member thereof, has authority to summon and administer oaths to witnesses, and the attendance of witnesses may be compelled by court process, on application of the Board to the District Judge.

Section 230. The findings of the Board are submitted in writing to the Governor, through the Marine Superintendent, for the Governor's approval, after which an adjustment will be made. Interested parties will be furnished a copy of the report when requested.

Section 231. All matters pertaining to such an investigation shall be completed before the vessel concerned leaves Canal waters, and no claim will be considered unless the reason therefor has been laid before the Canal authorities prior to the vessel's sailing.

Section 232. All claims for damages arising from injury to vessels, cargo, or passengers, from the passing of vessels through the locks, shall be adjusted by mutual agreement, when practicable, between The Panama Canal and the passengers, owners, agents, or underwriters of the vessel, or owners, agents or underwriters of the cargo of the vessel, as the respective interests may appear. In case of disagreement, suit may be brought by the claimant in the District Court of the Canal Zone, against the Governor of The Panama Canal.

Section 233. Settlement of claims for damages to vessels may include the actual or estimated cost of repairs, charter hire actually lost by the owners, or charter hire actually paid by the charterers of a vessel, depending on the terms of the charter party, for the time a vessel is tied up undergoing repairs necessitated by an injury for which The Panama Canal is found liable.

Section 234. If the maintenance of the vessel and wages of the crew are shown to be actually additional expenses or losses incurred outside of charter hire, they may be included as a part of the damages chargeable to The Panama Canal.

Section 235. Settlement may include other expenses, not including agents' fees, commissions or other incidental expenses of a similar nature, which are definitely and accurately shown to have been necessarily incurred by reason of the accident for which The Panama Canal is liable.

Section 236. If a vessel is not operated under charter, but by the owner personally, evidence shall be secured, if available, as to the sum for which vessels of the same size and class can be chartered in the market. If unable to determine such charter value, the value of the use of such vessel to her owner in the business in which she was engaged at the time of the injury shall be used as a basis for estimating the damage for the vessel's detention, and the books of the owner showing the vessel's net earnings about the time of the accident shall be considered as evidence of probable earnings during the time of detention. If the books are unavailable, such other evidence shall be furnished as may be required by the Auditor.

Section 237. The Auditor shall be furnished with such vouchers, receipts or other evidence as may be required by him in support of any item of a claim.

Section 238. No items which are speculative, indefinite, indeterminable, or matters of conjecture shall be allowed.

Section 239. The Canal will not hold itself responsible, nor consider any claims which may be submitted, for demurrage or delays due to landslides or other natural causes; necessary construction or maintenance work on any part of the Canal locks, terminals, or equipment; obstructions due to accidents; time necessary for measurements; congestion of traffic; or for any reason except those specifically set forth in the Canal regulations.

III. COMMUNICATIONS.

1. RADIO.

Section 240. It shall be unlawful for any ocean-going steamer carrying 50 or more persons, including passengers and crew, to leave or attempt to leave any port of the Canal Zone unless such steamer shall be equipped with an efficient apparatus for radio communication, in good working order, in charge of a person skilled in the use of such apparatus, which apparatus shall be capable of transmitting and receiving messages for a distance of at least one hundred miles, night or day. This does not apply to steamers plying only between the Canal Zone and ports less than 200 miles therefrom. The master or other person being in charge of such vessel which leaves or attempts to leave any port of the Canal Zone in violation of this article, shall, upon conviction, be fined in a sum not to exceed Five Thousand Dollars ($5,000.00) and any such fine shall be a lien upon such vessel, and the vessel may be liable therefor in the District Court of the Canal Zone, and the leaving, or attempting to leave, by any vessel from each and every port of the Canal Zone shall constitute a separate offense.

Section 241. As soon as radio communication can be established, vessels should report to the Port Captain their names, whether or not they desire to pass through the Canal, requirements, probable time of arrival, draft, and any other matters of importance and interest. If this information has been previously communicated to the Port Captain, through agents or otherwise, it will not be necessary to report by radio; but the probable time of arrival should always be sent by radio to the Port Captain at least 24 hours in advance of arrival.

Section 242. A ship within the 15-mile limit of the Canal Zone shall transmit only with low power, not exceeding ½ K.W. Testing and tuning will not be permitted within the 15-mile limit except after obtaining permission from Balboa Radio Station.

Section 243. Messages will be sent to Colon station when in Gatun Locks and to northward thereof, and to Balboa station when in Miraflores Locks and to southward thereof; between these two points ships may work either station,

preferably the nearer one; the high power station at Darien will not handle commercial work. Ships in the Pacific when more than 50 miles from Balboa will communicate with Cape Mala, from which station messages are relayed to the Canal Zone or Republic of Panama by telegraph.

Section 244. All messages between ships in the Canal Zone and ships at sea must be forwarded through the nearest shore station.

Section 245. Control of radio communication is entirely in the hands of the radio shore stations.

Section 246. All vessels fitted with radio, after leaving the terminal harbor to pass through the Canal, shall keep an operator on watch until the further terminal harbor has been reached. Messages relating to the ship's movements and Canal business shall take precedence over all commercial messages.

Section 247. Pilots on vessels passing through the Canal shall have the right to use a vessel's radio freely for the transaction of Canal business.

Section 248. Under the direction of the pilot, ships will report by radio any accident, either to themselves, or anything else that may delay them or require assistance, any sickness or casualties that require medical attendance, or any other matter of importance that may arise.

Section 249. No receiving charges, either coast station or forwarding, will be imposed against ships on radiograms transmitted by ships on Canal business. There will be no sending charge made against The Panama Canal by Canal Zone land lines or radio stations, for the transmission of radiograms to ships on Canal business.

Section 250. For procedure in obtaining free medical advice by radio, see Articles 205, 206 and 207.

Section 251. All previous rules and regulations heretofore adopted containing transit and harbor regulations for The Panama Canal and approaches thereto, including all waters under its jurisdiction, and which are inconsistent with the foregoing rules and regulations are hereby repealed.

Section 252. This Order shall take effect from and after January 1, 1924.

CALVIN COOLIDGE

THE WHITE HOUSE,
Dec. 20, 1923.

[No. 3938.]